

Opportunity to Cure and Continued Hearing

The Court considers Plaintiff's Response to the SS to have technical defects that warrant the Court exercising its discretion to provide Plaintiff an opportunity to correct the deficiencies highlighted above and file a compliant Response to the SS. (*Parkview Villas, supra*, 133 Cal.App.4th at 1210-1216.) Plaintiff shall file an amended Response to SS and Additional Material Facts in compliance with Code of Civil Procedure § 437c(b)(3) and California Rules of Court, Rule 3.1350(f) and (h). Plaintiff shall also file an amended compendium of exhibits with the deposition excerpts that Plaintiff cites and relies on highlighted in accordance with California Rules of Court, Rule 3.1116(c). Plaintiff shall file these amended opposition papers **by July 10, 2026**. The hearing shall be continued to **9:00 a.m. on August 7, 2026**. The moving party may, but is not required, to file a supplemental reply to address Plaintiff's amended response to the SS to the extent not otherwise covered in the reply on file. Any supplemental reply shall be filed **at least 11 calendar days prior to the continued hearing**.

7. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: ABM INDUSTRIES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM Industries, Inc. For the reasons set forth, the hearing on the motion for summary judgment is **continued to 9:00 a.m. on August 7, 2026**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.)

ABM Industries moves for summary judgment. Plaintiff opposes the motion. Plaintiff, however, has not complied with Rule 3.1350 in Plaintiff's Response ("Resp.") to Defendant ABM Industries, Inc.'s Separate Statement ("SS") of Undisputed Material Facts ("UMFs") for a number of reasons. The Court exercises its discretion to continue the hearing to provide Plaintiff an opportunity to cure the deficiencies in his Response to the SS. (*Parkview Villas Assn., Inc. v. State Farm*

Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1210-1216.)

Governing Law on Response to Moving Party's Separate Statement

Code of Civil Procedure section 437c(b) addresses the requirements for an opposition to a motion for summary judgment. With response to the opposition to the SS, the statute provides, "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion. (Code Civ. Proc. § 437c(b)(3) [emphasis added].)

In addition, Rule 3.1350 of the California Rules of Court elaborates on the form and content of the Response to the SS supporting the party's opposition to the motion. Among other things, Rule 3.1350(f) requires the Response to the SS to be "in the two-column format specified" in Rule 3.1350(h), a rule which provides images of examples of the proper format. (Cal. R. Ct., Rules 3.1350(f) and (h).) Rule 3.1350(f) further provides that "[e]ach material fact claimed by the moving party to be undisputed must be set out verbatim on the left side of the page, below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits." (Cal. R. Ct., Rule 3.1350(f)(1) [emphasis added].)

When Plaintiff responds to a UMF in the Response to the SS, Rule 3.1350(f) also directs, "On the right side of the page, directly opposite the recitation of the moving party's statement of material facts and supporting evidence, the response must unequivocally state whether that fact is "disputed" or "undisputed." An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. R. Ct., Rule 3.1350(f)(2) [emphasis added].)

Deficiencies in Plaintiff's Response to the SS and Deposition Excerpts

The Court has compared the UMFs stated in the moving party's SS in support of the motion to the UMFs listed in Plaintiff's Response. Plaintiff's Response lists 15

UMFs in the first column under the heading "Defendant ABMI's Undisputed Material Fact and Supporting Evidence" preceding a section titled "Plaintiff's Additional Material Facts." (Pl. Resp. pp. 2-4.) The 15 UMFs are not verbatim statements of ABM Industries' UMFS from the ABM Industries SS, and they do not set forth the evidence stated by ABM Industries establishing the fact stated. (Code Civ. Proc. § 437c(b)(3); Cal. R. Ct., Rule 3.1350(f)(1).) (See, e.g., UMFs 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15.) Admittedly, some of the UMFs are close to the UMF stated in the moving party's SS, but the Rule requires a verbatim statement of the UMF, not a paraphrase or a statement that omits any of the words used by the moving party in its UMF.

Plaintiff lists the evidence Plaintiff contends supports Plaintiff's response to the UMF in a third column titled "Plaintiff's Supporting Evidence," notwithstanding that the Rule mandates a two-column format. (Cal. R. Ct., Rule 3.1350(f)(1).) Further, if a fact is undisputed, then for purposes of the motion, the fact is established; no additional evidence cited by Plaintiff needs to be offered or considered by the Court to establish an undisputed fact. (See, e.g., UMFs 1-3 listed as "undisputed" with Plaintiff's citation to Plaintiff's evidence in the third column that is different from the evidence offered the moving party to establish the fact]; *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal. App. 4th 735, 747 ["That Myers focuses on facts set forth in the statement of undisputed facts rather than in the memorandum of points and authorities makes no difference. As a leading treatise explains, 'The agreement in the separate statement that a fact is "undisputed" is a concession only for purposes of the summary judgment motion. It is not evidence (because not under oath or verified); nor is it a judicial admission.' [Citations omitted.] [S]eparate statements of undisputed facts in support of a motion for summary judgment or adjudication make no binding judicial admissions. [Citations omitted.]"].) Yet, for facts listed as undisputed, Plaintiff fails to include in the first column (or anywhere in the Response to the SS) the evidence the moving party cited to establish the UMF in the SS, and Plaintiff instead cites his own evidence, or his own version of a citation to the moving party's evidence, in the third column. (See, e.g., UMFs 1-5.) The evidence supporting the UMF cited by the moving party in the SS is also supposed to be stated verbatim and in the same first column as the UMF. (Cal. R. Ct., Rule 3.1350(f)(1).)

As to those facts which Plaintiff's lists as disputed, in many instances the evidence Plaintiff cites in the (erroneous) third column does not contain proper citations to the evidence. For example, in Plaintiff's Response to UMFs 4 and 5 in the third column, Plaintiff identifies documents by their title, without any reference to the

exhibit letter or number and where it is located, such as an exhibit attached to the compendium of exhibits, an exhibit to the Miller Declaration, or an exhibit to a declaration filed by the moving party. (Cal. R. Ct., Rule 3.1350(f)(2).)

The portions of deposition transcript excerpts a party cites and relies on are required to be marked in brackets or highlighted. (Cal. R. Ct., Rule 3.1116(c) ["The relevant portion of any testimony in the deposition must be marked in a manner that calls attention to the testimony."].) The deposition excerpts attached as Exhibit I to Plaintiff's compendium are not bracketed or highlighted. (*Compare to* Voss Decl. Exhs. I and J.)

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8. 9:00 AM CASE NUMBER: C24-03387
CASE NAME: REBECCA MOSCHELLA VS. ASSAEDI ASSAEDI
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: ASSAEDI, ASSAEDI SAIF
TENTATIVE RULING:

Before the Court is Defendants Assaedi Saif Ahmed, Alsaid Azzya, and Stop & Save Gasoline's Motion to Set Aside Defaults.

Procedural Background

Plaintiff filed her Complaint on December 13, 2024. It contains a single cause of action for breach of contract related to a settlement agreement entered into by the parties